

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NANCY PRIOR, *Complainant*

v.

AMOOV GROUP; FREIGHTLEAD LLC; AND AIR 7 SEAS
TRANSPORT LOGISTICS, INC., *Respondents*.

DOCKET NO. 26-02

Served: June 30, 2026

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

**ORDER DENYING AIR 7 SEAS TRANSPORT LOGISTICS, INC.'S MOTION TO EXTEND TIME TO
ANSWER AS MOOT**

On February 10, 2026, Respondent Air 7 Seas Transport Logistics, Inc. filed a letter motion seeking an extension of the time to file an answer to the complaint. Dkt. 9. Prior to Air 7 Seas filing this letter motion, on February 6, 2026, Complainant had filed an amended complaint. Dkt. 7. Air 7 Seas filed its "Verified Answer to Formal Complaint and its Amendment Filed February 6, 2026" on March 3, 2026. An answer to a complaint is due 25 days after service of the complaint. 46 C.F.R. § 502.62(b)(1). It appears that Air 7 Seas took the position that the filing of the amended complaint rendered the original complaint inoperative and extended the time to answer until March 3, 2026, 25 days after service of the amendment. Dkt. 15.

Some words of the caution for the parties. First, motions for extension must be filed at least seven days prior to the scheduled filing date. 46 C.F.R. § 502.102(a). Air 7 Seas' motion was filed on February 10, 2026, the purported due date for its answer. It is unclear how Air 7 Seas calculated this date, since the Office of the Secretary served the complaint on January 14, 2026, which would make the answer due on February 9, 2026 (January 14, 2026 plus 25 days is February 8, 2026, which was a Sunday). If a motion for an extension is filed later than seven days prior to the scheduled filing date, the motion must state reasonable grounds for failure to meet the requirement. 46 C.F.R. § 502.102(a). Motions submitted after the scheduled filing date are only considered when exceptional circumstances are shown or as justice may require. 46 C.F.R. § 502.102(b). Air 7 Seas' motion did not recite exceptional circumstances or even reasonable grounds for filing a late motion.

Second, all non-dispositive motions, such as motions for an extension, must include a certification that the party has consulted with the opposing party to seek consent to the requested relief. 46 C.F.R. § 502.71(a). Air 7 Seas' motion did not include the required certification.

Finally, letter/email motions are not permitted. All requests for relief or action from the presiding officer must be in the form of a motion and must include the caption and title. Initial Order [Dkt. 6] ¶¶ 18-19.

Any motions filed by any party in the future that do not meet the requirements of the Commission's Rules or the Initial Order [Dkt. 6] may be rejected for filing or summarily denied. I encourage the parties and counsel to familiarize themselves with the Commission's Rules, found at 46 C.F.R. Part 502, and available here: <https://www.fmc.gov/proceedings/#regulations>.

Since I am directing Complainant to file an amended complaint by an accompanying order, Air 7 Seas' motion is **DENIED AS MOOT**.

ALEX
CHINTELLA



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ALEX CHINTELLA
Date: 2026.06.30
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Alex M. Chintella
Administrative Law Judge